



Notification Waiver Determination

Ochre Health - New Lambton Family Practice, NSW

Acquisition	Ochre Health Pty Ltd (Ochre Health) applied for a notification waiver in respect of its proposed acquisition of all of the assets of New Lambton Family Practice (NLFP) through a business and assets acquisition agreement, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	12 May 2026

Parties to the Acquisition	The acquirer, Ochre Health, supports independent doctors to provide general practice medical services in regional, rural and urban communities around Australia. Ochre Health currently operates 69 medical centres and urgent care clinics located in the ACT, NSW, Queensland, Tasmania and Victoria. Ochre Health group's medical recruitment business, Ochre Recruitment Pty Limited, also works with hospitals and medical practices across Australia and New Zealand to source and place locum and permanent doctors across a range of specialities. Ochre Health is majority owned and controlled by Genesis Capital (Genesis) an Australian-based private equity firm that invests in businesses operating in the healthcare sector. Genesis's investments include Holdsworth House Medical Group, which operates two general medical practices in Brisbane and Sydney, with a co-located medical research centre, specialist medical clinic and dentistry clinic at its Sydney premises. The target, NLFP is a general practice medical service operating from its premises in New Lambton, a suburb of Newcastle in New South Wales. NLFP is currently owned and operated by New Lambton Family Practice Pty Ltd and the trustee for Lual Services Trust. Ochre Health, through Ochre Medical Centre Kotara, and NLFP supply general practice medical services in Newcastle, NSW.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. the aggregation arising from the Acquisition appears low b. there are alternative suppliers of general practice medical services in the New Lambton area, and in the broader Newcastle area in NSW. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**